

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MIRIAM GAYLE KANE,

Petitioner

VS.

DAVID WILLIAM KANE,

Respondent

) Case Number: FDI-23-798208

) Hearing Date: June 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS; JUDGMENT ENFORCEMENT;
SANCTIONS; CASE MANAGEMENT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Miriam Gayle Kane and Respondent David William Kane.
- 2) On 5/1/26, Petitioner filed a Request for Order seeking (a) enforcement of terms of the parties' 11/6/25 Judgment; (b) \$5,000 in Family Code section 271 sanctions; (c) \$73,488 in attorney's fees and costs for fees currently owed and anticipated fees (including expert fees); and (d) a trial setting date.
- 3) On 5/7/26, Petitioner filed a Proof of Service indicating service of Petitioner's Request for Order and supportive documents was effectuated by electronic service on Respondent's counsel on 5/7/26.
- 4) On 6/2/26, Petitioner filed an Income and Expense Declaration.
- 5) On 6/2/26, Petitioner filed a Proof of Service indicating service of Petitioner's Income and Expense Declaration was effectuated by electronic service on Respondent's counsel on 6/2/26.

- 6) On 6/22/26, Petitioner filed an Update Declaration augmenting the Family section 2030 attorney's fees request from \$73,488 to \$86,827 with attached attorney billing statements.
- 7) Respondent did not file a Responsive Declaration.

B. Findings and Order

- 1) Petitioner's unopposed request for enforcement of terms of the parties' 11/6/25 Judgment is GRANTED. Based on the terms of the 11/6/25 Judgment, the Court finds good cause to issue the following orders:
- 2) Regarding the Auburn Street property (located at 35 Auburn Street, San Francisco), the Court finds that Respondent failed to provide timely proof of any Family Code section 2640 reimbursement claims pursuant to section 2(a)(i) of the Judgment; therefore, no Family Code section 2640 reimbursement claim related to the Auburn Street property will be credited absent further order of the Court.
- 3) The Court confirms that the agreed value of the Auburn Street property for purposes of a buyout is \$1,550,000. See section 2(a)(ii) of the Judgment.
- 4) By 7/9/26, Respondent shall notify Petitioner in writing whether he intends to proceed with a buyout of Petitioner's community property interest in Auburn Street property based on the agreed \$1,550,000 value.
- 5) If Respondent elects to proceed with the buyout, Respondent shall complete the buyout by 9/9/26, unless the parties agree otherwise in writing.
- 6) The Court reserves jurisdiction over the disposition of the Auburn Street property and any related issues.
- 7) If Respondent does not timely elect to proceed with or complete the buyout, Petitioner may file a new Request for Order seeking to compel the sale of the Auburn Street property.
- 8) Regarding retirement accounts, the parties agreed to jointly retain Moon Schwartz and Madden (MSM) to characterize and equalize all retirement accounts. See section 2(b)(i) of the Judgment.
- 9) Respondent shall supply all preliminary information and documents requested by MSM by 7/2/26. Respondent shall pay his 50% share of MSM's estimated cost and supply any additional information and documents requested by MSM within 7 days of MSM's request.

1 10) The Court reserves jurisdiction to issue additional orders to ensure completion of the equalization
2 or retirements accounts and to impose sanctions in the event Respondent fails to comply.

3 11) Regarding retrieval of personal property, the parties shall coordinate a date certain for the transfer
4 of Petitioner's personal property consistent with the Judgment. The parties shall meet and confer
5 regarding and deadline and delivery of the items as the terms of the Judgment require Respondent
6 to deliver the items to a storage site in either San Francisco or San Mateo. See section 3(a). The
7 parties are encouraged to work cooperatively together to make the transfer of property as
8 seamless for both sides as possible.

9 12) Petitioner's request for \$86,827 in Family Code section 2030 attorney's fees is DENIED.

10 13) Either party may file an At Issue Memorandum to request a Status Conference at which time a
11 trial date can be requested if it is determined that the parties are ready for trial on the remaining
12 issues.

13 14) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

14 15) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
15 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
16 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
17 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
18 proposed order after hearing directly to the court. Failure to submit the order after hearing within
19 10 days may allow the other party to prepare a proposed order and submit it to the court in
20 accordance with CA Rules of Court, Rule 5.125(d).